



999



July 16,
March 7, 2001

Christina L. Kamnikar
Division of Minerals and Geology
Department of Natural Resources
1313 Sherman Street, Room 215
Denver, CO 80203

RECEIVED

JUL 19 2001

Division of Minerals and Geology

Re: Southdown, Inc.
Permit # 77-361
Permit # 77-208
Permit # M-93-041
Permit # M-77-341

Dear Ms. Kamnikar:

As you know, Southdown, Inc. ("Southdown") is the owner/operator of a cement productions facility and aggregate quarries near Lyons, Colorado which holds the above referenced permits overseen by the Colorado Division of Minerals and Geology.

We write you to advise you that on November 6, 2000 a tender offer for all the issued and outstanding shares of Southdown, Inc. was completed. As a result of the transaction, Southdown is now an indirect subsidiary of CEMEX, S. A. de C.V. (Cemex). Following the acquisition by Cemex, Southdown continued to own and operate the Lyons, Colorado facility. Operations and plant personnel were unchanged by this transaction.

We also wish to inform you that Southdown is in the process of changing its name to CEMEX, Inc. Again, the operations and plant personnel will remain unchanged.

Please notify us if there are any additional regulatory requirements that must be satisfied to ensure that this name change is properly reflected in your records. Should you have any questions please feel free to contact me at (303) 823-2113.

Sincerely,

Steve Mossberg
Compliance Manager

cc: Daniel W. Heintz

ATTACHMENTS

- 1. Letter**
- 2. \$500.00 Check (4 Application Transfer Fees @ \$125.00 each)**
- 3. 4 Application Transfer Packages**
- 4. 4 Bond Riders reflecting name change**
- 5. State of Incorporation Name Change Certificate**
- 6. State of Colorado Corporation Certificate reflecting name change**

SOUTHDOWN, INC.
1200 Smith Street, Suite 2400
Houston, Texas 77002

Check Date: 6/29/01

VOID AFTER 90 DAYS

Pay this amount:

\$***500.00**

**Pay to the
Order Of:**

DIVISION OF MINERALS & GEOLOGY
STATE OF COLORADO
1313 SHERMAN ST ROOM 215
DENVER CO 80203

SOUTHDOWN, INC.

JHB H. Lunt
2 Craig Carleton

INVOICE DATE	DOCUMENT NO.	GROSS	DISCOUNT	NET AMOUNT
6/27/01 AT	21178 INV#21178	500.00	.00	500.00

WENDORF Ph: 713-650-6200

INVOICE DATE	DOCUMENT NO.	GROSS	DISCOUNT	NET AMOUNT
6/29/01	** Total SOUTHDOWN, INC.	Check# 1200	500.00	500.00

Secretary of State
Corporations Section

For office use only

012

Please include a typed
self-addressed envelope

RECEIVED

JUL 19 2001

MUST BE TYPED

FILING FEE: \$25.00

MUST SUBMIT TWO COPIES

Division of Minerals and Geology

FILED - CUSTOMER COPY
DONETTA DAVIDSON
COLORADO SECRETARY OF STATE

20011061110 C

\$ 75.00

SECRETARY OF STATE

03-23-2001 10:26:32

CHANGE OF NAME APPLICATION FOR AMENDED AUTHORITY

Pursuant to the provisions of the Colorado Business Corporation Act, the undersigned corporation hereby applies for an Amended Authority and states:

FIRST: The name of the corporation is: Southdown, Inc.

SECOND: If the corporate name was not available, the assumed name of the corporation is: _____

THIRD: _____ (Check if Applicable) The corporate name of the corporation has become available in Colorado and the corporation desires to amend its Authority to reflect the corporate name on the records of the Secretary of State.

_____ The corporation has amended the period of duration in its Articles of Incorporation to _____

X _____ The corporation has changed its name to CEMEX, Inc.

_____ The name which it elects to use in Colorado is: _____

_____ (If its corporate name is not available for use in Colorado)

_____ The corporation has redomesticated from _____ to _____

FOURTH: This application is accompanied by a Certificate of Fact, duly authenticated by the proper officer in the state or country of incorporation (or redomestication as the case may be) certifying the statement(s) made above.

CEMEX, Inc.

Name of Corporation

Signature

Yvonne L. White

Title

Asst Secretary

Revised 7/95



STATE OF COLORADO

DEPARTMENT OF
STATE

CERTIFICATE

I, DONETTA DAVIDSON, SECRETARY OF STATE OF THE STATE OF
COLORADO HEREBY CERTIFY THAT

ACCORDING TO THE RECORDS OF THIS OFFICE

CEMEX, INC.
(LOUISIANA CORPORATION)

FILE # 19911018378 WAS FILED IN THIS OFFICE ON March 21, 1991
AND HAS COMPLIED WITH THE APPLICABLE PROVISIONS OF THE
LAWS OF THE STATE OF COLORADO AND ON THIS DATE IS IN GOOD
STANDING AND AUTHORIZED AND COMPETENT TO TRANSACT BUSINESS
OR TO CONDUCT ITS AFFAIRS WITHIN THIS STATE.

Dated: March 23, 2001

Donetta Davidson

SECRETARY OF STATE

For office use only

Mail to: Secretary of State
Corporations Section
1560 Broadway, Suite 200
Denver, CO 80202
(303) 894-2251
Fax (303) 894-2242

MUST BE TYPED
FILING FEE: \$10.00
MUST SUBMIT TWO COPIES

FILED - CUSTOMER COPY
DONETTA DAVIDSON
COLORADO SECRETARY OF STATE

PLEASE INCLUDE A TYPED
SELF-ADDRESSED ENVELOPE

APPLICATION FOR
RESERVATION OF NAME

20011061119 C
\$ 60.00
SECRETARY OF STATE
03-23-2001 10:28:48

To the Secretary of State of the state of Colorado:

Pursuant to the provisions of the Colorado Business Corporation Act, Colorado Nonprofit Corporation Act, Colorado Uniform Limited Partnership Act of 1981 or the Colorado Limited Liability Company Act, the undersigned hereby applies for reservation of the following name for a period of one hundred twenty days:

1ST CHOICE: Southdown, Inc.

Agent

Corporation Service Company
Typed name of applicant

1560 Broadway, Denver, CO, 80202

Pam Trujillo, John Long, Kurt Plender

UNITED STATES OF AMERICA

State of Louisiana

Box McKeithen
SECRETARY OF STATE

As Secretary of State, of the State of Louisiana, I do hereby Certify that
a copy of an Amendment to the Articles of Incorporation of
SOUTHDOWN, INC.

Domiciled at NEW ORLEANS, LOUISIANA, changing the corporate
name to

CEMEX, INC.

Was filed and recorded in this Office on February 28, 2001.

*In testimony whereof, I have hereunto set
my hand and caused the Seal of my Office
to be affixed at the City of Baton Rouge on.*

February 28, 2001

Box McKeithen

ABA 13000400D 35044355

Secretary of State



FOX MCKEITHEN
Secretary of State
Received & Filed
DATE FEB 28 2001

ARTICLES OF AMENDMENT TO
RESTATED ARTICLES OF
INCORPORATION OF
SOUTHDOWN, INC.

§
§
§
§

STATE OF TEXAS
COUNTY OF HARRIS
CITY OF HOUSTON

BE IT KNOWN, That on this 27th day of February, 2001,

BEFORE ME, EVA GUJARDO, a Notary Public, duly
commissioned and qualified in and for the County of Harris, State of Texas, and in the presence
of the witnesses hereinafter named and undersigned:

PERSONALLY CAME AND APPEARED:

GILBERTO PEREZ and JILL SIMEONE appearing herein and
acting for Southdown, Inc. (of which corporation they are, respectively, Exec. Vice President
and Asst. Secretary), a corporation organized and existing under the laws of the
State of Louisiana, domiciled in the Parish of Orleans, State of Louisiana, organized by Articles
of Incorporation effective April 4, 1930, which Articles, as amended, were restated pursuant to
Restated Articles of Incorporation effective September 15, 1983, and further amended as of
April 10, 1987, December 2, 1987, April 23, 1988, May 23, 1988, March 4, 1991, January 25,
1994, June 26, 1998, and July 17, 1998 ("Corporation"), who declared that pursuant to Sections
31 and 32 of the Louisiana Business Corporation Law, resolutions of the Board of Directors of
the Corporation adopted by unanimous written consent dated February 26, 2001 and resolutions
of the sole shareholder of the Corporation, they now appear for the purpose of executing this act
of amendment and putting into authentic form the amendment so adopted by the Board of
Directors and the sole shareholder of the Corporation.

AND THE SAID APPEARERS further declare that by a unanimous vote of the Board of
Directors of the Corporation and that all of the outstanding shares of capital stock of the
Corporation were voted by the sole shareholder of said Corporation in favor of the following
amendment, and it was:

RESOLVED, that Article I of the Restated Articles of Incorporation, as amended of
Southdown, Inc. be amended so that:

1. The sole paragraph appearing under Article I is hereby deleted and there is
substituted in its place the following:

The name of the corporation shall be CEMEX, Inc.

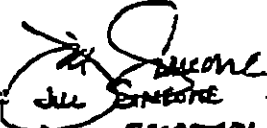
APPEARERS FURTHER stated that all of the shares of the Corporation have par value;
that the Corporation is authorized to issue 210,000,000 shares, of which 200,000,000 are
common shares of the par value of \$1.25 and 10,000,000 are preferred shares of the par value of
\$0.05 per share.

AND SAID APPEARERS having requested me, Notary, to note said amendment in authentic form, I do by these presents receive said amendments in the form of this public act to the end that said amendment may be promulgated and recorded and thus be read into the Restated Articles of Incorporation of Southdown, Inc., as hereinabove set forth.

THUS DONE AND PASSED, in my office at Houston, Harris County, State of Texas, on the day, month and year first above written, in the presence of the undersigned competent witnesses, who herunto sign their names with the said appearers and me, Notary, after a due reading of the whole.

SOUTHDOWN, INC.

By: 
Name: GILBERTO PEREZ
Title: EXECUTIVE V.P.

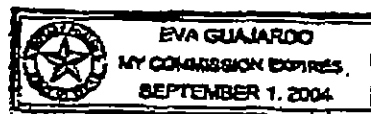
By: 
Name: JULIE SIMONE
Title: ASST. SECRETARY, GENERAL COUNSEL, VP

WITNESSES:





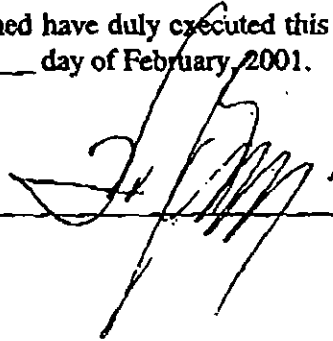

NOTARY PUBLIC



**UNANIMOUS WRITTEN CONSENT
OF THE BOARD OF DIRECTORS
OF
SOUTHDOWN, INC.**

The undersigned, being all of the directors of Southdown, Inc., a Louisiana corporation (the "Company"), and being entitled to vote upon the resolutions attached hereto as Annex A (the "Resolutions") as if the same had been submitted at a formal meeting of the Board of Directors of the Company duly called and held for the purpose of acting upon the Resolutions, do hereby consent, in accordance with Section 81(C)(9) of the Business Corporation Law of the State of Louisiana, that the Resolutions are deemed to be adopted to the same extent and to have the same force and effect as if adopted by unanimous vote at a formal meeting of the Board of Directors of the Company duly called and held for the purpose of acting upon proposals to adopt the Resolutions.

IN WITNESS WHEREOF, the undersigned have duly executed this Unanimous Written Consent in counterparts to be effective as of the ___ day of February, 2001.

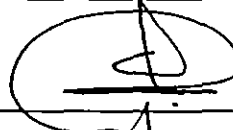
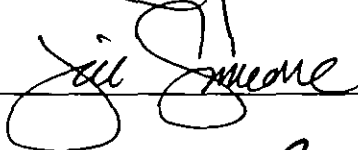
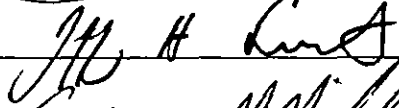


Being all of the directors of Southdown, Inc., a
Louisiana corporation

**UNANIMOUS WRITTEN CONSENT
OF THE BOARD OF DIRECTORS
OF
SOUTHDOWN, INC.**

The undersigned, being all of the directors of Southdown, Inc., a Louisiana corporation (the "Company"), and being entitled to vote upon the resolutions attached hereto as Annex A (the "Resolutions") as if the same had been submitted at a formal meeting of the Board of Directors of the Company duly called and held for the purpose of acting upon the Resolutions, do hereby consent, in accordance with Section 81(C)(9) of the Business Corporation Law of the State of Louisiana, that the Resolutions are deemed to be adopted to the same extent and to have the same force and effect as if adopted by unanimous vote at a formal meeting of the Board of Directors of the Company duly called and held for the purpose of acting upon proposals to adopt the Resolutions.

IN WITNESS WHEREOF, the undersigned have duly executed this Unanimous Written Consent in counterparts to be effective as of the ____ day of February, 2001.


Being all of the directors of Southdown, Inc., a
Louisiana corporation

**RESOLUTIONS OF
THE BOARD OF DIRECTORS OF
SOUTHDOWN, INC.**

Amendment of Articles of Incorporation of Southdown, Inc.

WHEREAS, as a result of the transactions completed at the end of the fiscal year 2000, the Board of Directors of Southdown, Inc., a Louisiana corporation (the "Corporation") deems it to be in the best interest of the Corporation to change the name of the Corporation to CEMEX, Inc.;

NOW, THEREFORE, IT IS HEREBY--

RESOLVED, that the sole paragraph appearing under Article I of the Restated Articles of Incorporation, as amended of the Corporation be deleted in its entirety and amended to read as follows:

"The name of this Corporation shall be CEMEX, Inc."

; and further

RESOLVED, that the Board of Directors of the Corporation hereby directs that the foregoing amendment to the Restated Articles of Incorporation, as amended, of the Corporation be submitted to the Corporation's shareholder for its approval and that the Board of Directors of the Corporation recommends approval of such amendment; and further

RESOLVED, that upon receipt of the approval of the Corporation's shareholder that the Corporation file or cause to be file Articles of Amendment to the Restated Articles of Incorporation, as amended with the Secretary of State of the State of Louisiana, with such changes thereon as the officer executing the same shall approve; and further

RESOLVED, that the officers of the Corporation are hereby authorized to file, or cause to be filed, any and all other filings or certifications with any other jurisdictions where the Corporation transacts business as a foreign corporation, or where the conduct of the Corporation's business or the ownership of its properties would require the Corporation to make a filing to reflect the change of the Corporation's name; and further

RESOLVED, that the Bylaws of the Corporation are hereby amended to be the Bylaws of CEMEX, Inc., a Louisiana corporation; and further

Name Change of Subsidiary Entities

RESOLVED, that the officers of the Corporation are hereby authorized and directed to execute and deliver any and all amendments, filings, certificates or other documents to effect the name change of the following subsidiaries which are owned by the Corporation: Southdown California Aggregates, Inc., Southdown Finance, Inc., Southdown Concrete Products, Inc., Southdown California Cement LLC, Southdown SMI Holdings LLC, Southdown Environmental LLC and Canadian Medusa Cement Ltd., including any filings which are necessary in those states where such entities are qualified to transact business as a foreign corporation or entity, or where the conduct of each of such entity's business would require such a filing; and further

General

RESOLVED, that each of the officers of the Corporation be, and hereby is, in accordance with the foregoing resolutions, authorized, in the name and on behalf of the Corporation, to prepare, execute and deliver any and all certificates, agreements, amendments, instruments, reports, schedules, statements, consents, documents and information (including any certificates or filings with applicable governmental authorities and any and all amendments to Bylaws or other governance documents to reflect the name change) and to incur all such fees and expenses as in such officer's judgment shall be necessary, appropriate or advisable with respect to the transactions contemplated by the foregoing resolutions, and to take all other actions that such officer deems necessary, appropriate or advisable in order to comply with the applicable laws and regulations of any jurisdiction, or otherwise to effectuate and carry out the purposes of the foregoing resolutions and to permit the transactions contemplated by the foregoing resolutions to be lawfully consummated, the taking of any such actions and the execution of any such agreements or other documents conclusively to evidence the due authorization thereof by the Corporation; and further

RESOLVED, that all lawful actions previously taken by any officer, director, representative or agent of the Corporation, by or on behalf of the Corporation or any of its affiliates in connection with the acts, transactions and agreements contemplated by the foregoing resolutions be, and each of the same hereby is, adopted, ratified, confirmed and approved in all respects as the act and deed of the Corporation; and further

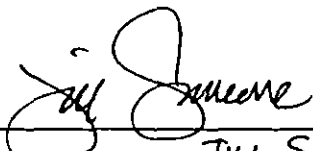
RESOLVED, that the Secretary or the Assistant Secretary of the Corporation be, and each of them hereby is, authorized and empowered to certify as to all matters pertaining to the acts, transactions or agreements contemplated in the foregoing resolutions.

**WRITTEN CONSENT
OF THE SOLE SHAREHOLDER
OF
SOUTHDOWN, INC.**

The undersigned, being the sole shareholder of Southdown, Inc., a Louisiana corporation (the "Company"), and being entitled to vote upon the resolutions attached hereto as Annex A (the "Resolutions") as if the same had been submitted at a formal meeting of the shareholders of the Company duly called and held for the purpose of acting upon the Resolutions, do hereby consent, in accordance with Section 76 of the Business Corporation Law of the State of Louisiana, that the Resolutions are deemed to be adopted to the same extent and to have the same force and effect as if adopted by unanimous vote at a formal meeting of the shareholders of the Company duly called and held for the purpose of acting upon proposals to adopt the Resolutions.

IN WITNESS WHEREOF, the undersigned has duly executed this Written Consent to be effective as of the ____ day of February, 2001.

CENA HOLDING INC.

By: 
Name: Jim Simone
Title: CEO

Being the sole shareholder of Southdown, Inc., a
Louisiana corporation

**RESOLUTIONS OF
THE SOLE SHAREHOLDER OF
SOUTHDOWN, INC.**

Amendment of Articles of Incorporation of Southdown, Inc.

WHEREAS, as a result of the transactions completed at the end of the fiscal year 2000, the Board of Directors of Southdown, Inc., a Louisiana corporation (the "Corporation") has recommended to the sole shareholder of the Corporation that the Corporation change its name to CEMEX, Inc.;

NOW, THEREFORE, IT IS HEREBY

RESOLVED, that the proposal to change the name of the Corporation to CEMEX, Inc. by means of an amendment to the Corporation's Restated Articles of Incorporation, as amended, be and it hereby is authorized and approved in all respects; and further

RESOLVED, that the form, terms and provisions of the Articles of Amendment to Restated Articles of Incorporation of Southdown, Inc. be and they hereby are authorized and approved, and that the President, any Vice President, any Secretary or any Assistant Secretary, be and he or she hereby is, authorized and directed to take, in the name and on behalf of the Corporation, any and all actions as are necessary to effect the intent of the foregoing resolutions, including filing the Articles of Amendment to Restated Articles of Incorporation with the Secretary of State of the State of Louisiana, with such changes as the officer or officers executing same shall approve, such approval to be evidenced by each officer's signatures thereon; and further

RESOLVED, that the officers of the Corporation be and they are hereby authorized to prepare (or cause to be prepared), execute and file (or cause to be filed) with the Secretary of State of Louisiana any and all documents necessary or appropriate to effect the intent of the foregoing resolutions; and further

RESOLVED, that the officers of the Corporation be and they are hereby authorized to prepare (or cause to be prepared), execute and file (or cause to be filed) such other documents, instruments, amendments, certificates or other filings necessary to reflect the change of the Corporation's name in those jurisdictions where such filing may be required; and further

General

RESOLVED, that each of the officers of the Corporation be, and hereby is, in accordance with the foregoing resolutions, authorized, in the name and on behalf of the Corporation, to prepare,

execute and deliver any and all certificates, agreements, instruments, reports, schedules, statements, consents, documents and information and to incur all such fees and expenses as in such officer's judgment shall be necessary, appropriate or advisable with respect to the transactions contemplated by the foregoing resolutions, and to take all other actions that such officer deems necessary, appropriate or advisable in order to comply with the applicable laws and regulations of any jurisdiction, or otherwise to effectuate and carry out the purposes of the foregoing resolutions and to permit the transactions contemplated by the foregoing resolutions to be lawfully consummated, the taking of any such actions and the execution of any such agreements or other documents conclusively to evidence the due authorization thereof by the Corporation; and further

RESOLVED, that all lawful actions previously taken by any officer, director, representative or agent of the Corporation, by or on behalf of the Corporation or any of its affiliates in connection with the acts, transactions and agreements contemplated by the foregoing resolutions be, and each of the same hereby is, adopted, ratified, confirmed and approved in all respects as the act and deed of the Corporation; and further

RESOLVED, that the Secretary or the Assistant Secretary of the Corporation be, and each of them hereby is, authorized and empowered to certify as to all matters pertaining to the acts, transactions or agreements contemplated in the foregoing resolutions.